



Residential Tenancies Commission
1650-155 Carlton Street, Winnipeg, Manitoba, Canada R3C 3H8
T 204-945-2028 Toll-Free 1-800-782-8403
F 204-945-5453 Email: rtc@gov.mb.ca

RECEIVED

JAN 29 2019

January 28, 2020

My Place Realty
1274 Archibald Street
Winnipeg, MB R2J 0Z3

By Fax & Regular Mail

Dear Sir/Madam:

RE: Rent Increase Appeal: 585 Corydon Avenue, Winnipeg, MB

To date, the following party has appealed the Order of The Residential Tenancies Branch relating to the above-mentioned property:

- E. Rosner- unit 10

Please find enclosed a copy of the tenants' appeal.

The Commission will be scheduling a hearing to consider this matter as soon as possible, and you will receive written notice of the hearing date, and time from our office, as soon as it is set.

Should you require additional information please call or email the Commission as indicated above.

Yours truly,

MICHELLE POLLOCK-KOHN
Deputy Chief Commissioner
Residential Tenancies Commission
/na
Encl.

**THE RESIDENTIAL TENANCIES ACT
LOI SUR LA LOCATION À USAGE D'HABITATION
THE RESIDENTIAL TENANCIES COMMISSION
COMMISSION DE LA LOCATION À USAGE D'HABITATION**

BETWEEN : (please print)

ENTRE : (veuillez écrire en caractère d'imprimerie)

My Place Realty
LANDLORD / LOCATEUR

1274 Archibald St. Winnipeg, MB R2J 2S5
CURRENT ADDRESS / ADRESSE ACTUELLE

BUS. PHONE / TÉLÉPHONE AU TRAVAIL HOME PHONE / TÉLÉPHONE AU DOMICILE

FACSIMILE / FACSIMILE

EMAIL / COURRIEL

Evan Rosner
TENANT / LOCATAIRE

AND/ET

10-585 Condon Ave. Winnipeg, MB R2J 2S5
CURRENT ADDRESS / ADRESSE ACTUELLE

BUS. PHONE / TÉLÉPHONE AU TRAVAIL HOME PHONE / TÉLÉPHONE AU DOMICILE

FACSIMILE / FACSIMILE

EMAIL / COURRIEL

**NOTICE OF APPEAL
AVIS D'APPEL**

ADDRESS OF RENTAL UNIT IN DISPUTE:

ADRESSE DE L'UNITÉ LOCATIVE EN CAUSE: 10-585 Condon Ave. "The Pines"

ORDER NO. / NUMÉRO DE L'ORDRE: W 2019-003958-0001

I, Evan Rosner, disagree with the Decision/Order of the Residential Tenancies Branch dated Jan 9, 2020, 2020 and want to appeal to the Residential Tenancies Commission.

I disagree with the Decision/Order of the Residential Tenancies Branch for the following reasons: Approval to increase rent above guidelines has been granted for more than 3 years sequentially. The capital expenditures described by My Place Realty do not justify the proposed increase of 3.20%.

Je ne suis pas d'accord avec la décision ou l'ordre de la Direction de la location à usage d'habitation en date du Jan 9, 2020, 2020 et désire interjeter appel devant la Commission de la location à usage d'habitation.

Je ne suis pas d'accord avec la décision ou l'ordre de la Direction de la location à usage d'habitation pour ces raisons: The total rent increase over the course of several years is an affront to principle of consumer protection as the total rent increase is worth much more than what the rent increase guideline would permit, year by year.

English ☒ French - ☐ Indicate whether services in English or French are required for the hearing
Anglais ☒ Français - ☐ Indiquer votre préférence de service pour l'audience en anglais ou en français

Jan 24, 2020
Date

[Signature]
Signature

IMPORTANT NOTE:

AT THE HEARING OF THE APPEAL, THE RESIDENTIAL TENANCIES COMMISSION WILL NOT CONSIDER ANY CLAIMS THAT WERE NOT THE SUBJECT OF A CLAIM AND DETERMINATION BY THE RESIDENTIAL TENANCIES BRANCH. ANY NEW CLAIMS MUST BE FILED WITH THE RESIDENTIAL TENANCIES BRANCH.

A COPY OF THIS NOTICE WILL BE GIVEN BY THE RESIDENTIAL TENANCIES COMMISSION TO THE DIRECTOR OF THE RESIDENTIAL TENANCIES BRANCH AND TO ALL PERSONS DIRECTLY AFFECTED BY THE DECISION OR ORDER APPEALED FROM.

NOTE IMPORTANTE:

LORS DE L'AUDITION DE L'APPEL, LA COMMISSION DE LA LOCATION À USAGE D'HABITATION NE PRENDRA PAS EN CONSIDÉRATION LES POINTS QUI N'ÉTAIENT PAS CONTENUS DANS LA DEMANDE INITIALE ET SUR LESQUELS LA DIRECTION DE LA LOCATION À USAGE D'HABITATION N'A PAS DÉJÀ STATUÉ. DANS DE TELS CAS, UNE NOUVELLE DEMANDE DOIT ÊTRE DÉPOSÉE AUPRÈS DE LA DIRECTION.

UNE COPIE DU PRÉSENT AVIS DOIT ÊTRE REMISE PAR L'APPELANT AU DIRECTEUR DE LA LOCATION À USAGE D'HABITATION ET À TOUTES LES PERSONNES DIRECTEMENT TOUCHÉES PAR LA DÉCISION OU L'ORDRE DONT IL Y A APPEL.

ORDER NO: W2019-003958-009

THE RESIDENTIAL TENANCIES BRANCH

BETWEEN

My Place Realty
1274 Archibald Street
Winnipeg MB R2J 0Z3

LANDLORD

AND

E. Rosner
10 - 585 Corydon Avenue
Winnipeg MB R3L 0P3

TENANT

ADDRESS OF RENTAL UNIT: 10 - 585 Corydon Avenue, Winnipeg MB R3L 0P3

ORDER

The Landlord applied for approval of an above guideline rent increase under Section 123 of The Residential Tenancies Act.

After considering the information received, it is ordered that, effective July 1, 2020, the rent for the rental unit can increase as follows:

From:

Basic Rent:	\$752.00
Total Rent	\$752.00

To a Maximum of:

Basic Rent:	\$781.00
Total Rent	\$781.00

THE RESIDENTIAL TENANCIES BRANCH

1700 - 155 Carlton Street
Winnipeg, Manitoba R3C 3H8
Telephone: 204-945-2484
e-mail: charlotte.lilke@gov.mb.ca
Toll-Free: 1-800-782-8403

DATED THIS 8th day of January, 2020



C. Lilke
Residential Tenancies Officer

If you want to appeal this Order you must apply to the Residential Tenancies Commission, 1650 - 155 Carlton Street, Winnipeg MB R3C 3H8 in person or by mail (telephone: 204-945-2028, toll-free: 1-800-782-8403, fax: 204-945-5453) no later than Monday, January 27, 2020. You must file a copy of this Order with your Notice of Appeal. An appeal suspends the Branch's Order.

Order of the Residential Tenancies Branch

Manitoba 

FORM 3

Schedule 3

Landlord's Summary Information - Application for Above-Guideline Increase*

*This form was prepared by the landlord for the information of tenants. The amount of the rent increase is subject to approval by the Residential Tenancies Branch. The Branch will review the landlord's information and tenants' comments and will issue an Order setting the rent.

Address of Residential Complex: 585 Corydone Avenue, Winnipeg, MB R3L 0P3

Increase Requested: 9.89% or \$ 77.39 per month per unit. Total expenses for the complex period from April 1, 2017 to March 31, 2018 have increased in comparison to the previous period.

1. Operating Expenses (expenses that recur on a regular basis, e.g. electricity expenses)

Operating expenses increased by:

Some of the larger operating expense increases were:

Plumbing	\$ 2,740.30
Painting	\$ 2,379.17
Caretaker	\$ 1,087.05

2. Capital Expenses (expenses to buy or replace appliances, services or furnishings or for capital improvements that have a lasting and long-term benefit to the residential complex, e.g. roof replacement – a landlord can claim only a portion of these expenses – 1/3, 1/4, 1/6 or 1/8)

Total amount spent: \$ 5,457.77
Total amount claimed: \$ 750.90

Some of the major capital expenses were:

(nature of capital expense)	(amount claimed)
Light Fixtures	\$ 476.20
Intercom	\$ 274.70

3. Change in service (e.g. addition of air conditioning or withdrawal of cable TV) If no change, leave blank.

The value of services or facilities added is: _____

Description of added services or facilities: _____

The value of services or facilities withdrawn is: _____

Description of withdrawn services or facilities: _____

4. Economic Adjustment (The economic adjustment factor is a percentage set by the government each year to account for the effect of inflation on landlords' revenue.) Under The Residential Tenancies Act and Regulations, the economic adjustment factor is multiplied by the total revenue for the complex.

0.8% x 97,578.00 = 780.62
Economic adjustment factor Revenue for complex Amount included on application

TOTAL CLAIMED:

1) Increase in operating expenses	\$8,684.10
2) Allowable portion of capital expenses	\$750.90
3) Value of change in services/facilities	\$0.00
4) Economic adjustment	\$780.62
TOTAL INCREASE	\$10,215.62

JUN 15 2018

The monthly rent for each unit will be increased by (complete appropriate option):

(a) Total Increase \$ 8,684.10 divided by 12 months = \$ 723.67 divided by the number of units 11 = \$ 65.79

OR

(b) Total Increase \$ 10,215.62 times 100 divided by [undiscounted rent roll \$ 8,611.00 times 12 months] = 9.89%

My Place Realty
Print name of landlord

[Signature]
Signature of landlord

June 15, 2018
Date

Manitoba 

ORDER NO: W2018-003010-009

THE RESIDENTIAL TENANCIES BRANCH

BETWEEN

My Place Realty
1274 Archibald Street
Winnipeg MB R2J 0Z3

LANDLORD

AND

E. Rosner
10 - 585 Corydon Avenue
Winnipeg MB R3L 0P3

TENANT

ADDRESS OF RENTAL UNIT: 10 - 585 Corydon Avenue, Winnipeg MB R3L 0P3

ORDER

The Landlord applied for approval of an above guideline rent increase under Section 123 of The Residential Tenancies Act.

After considering the information received, it is ordered that, effective July 1, 2019, the rent for the rental unit can increase as follows:

From:

Basic Rent:	\$692.00
Total Rent	\$692.00

To a Maximum of:

Basic Rent:	\$752.00
Total Rent	\$752.00

THE RESIDENTIAL TENANCIES BRANCH

1700 - 155 Carlton Street
Winnipeg, Manitoba R3C 3H8
Telephone: 204-945-2990
e-mail: lisa.bellingham@gov.mb.ca
Toll-Free: 1-800-782-8403

DATED THIS 5th day of September, 2018


L. Bellingham
Residential Tenancies Officer

If you want to appeal this Order you must apply to the Residential Tenancies Commission, 1650 - 155 Carlton Street, Winnipeg MB R3C 3H8 in person or by mail (telephone: 204-945-2028, toll-free: 1-800-782-8403, fax: 204-945-5453) no later than Monday, September 24, 2018. You must file a copy of this Order with your Notice of Appeal. An appeal suspends the Branch's Order.

Manitoba 